

Gouramma Alias Gouri W/O Shivaraj ... vs Shivaraj S/O Sadashiv Chavare on 20 March, 2023

- 1 -

CP No. 100010 of 2023

IN THE HIGH COURT OF KARNATAKA, DHARWAD
BENCH

DATED THIS THE 20TH DAY OF MARCH, 2023

BEFORE

THE HON'BLE MRS JUSTICE K.S.HEMALEKHA
CIVIL PETITION NO. 100010 OF 2023

BETWEEN:

GOURAMMA @ GOURI W/O SHIVARAJ CHAVARE
D/O MAHADEV VITOBA BHOSALO,
AGE 29 YEARS, OCC STUDENT AND HOUSEHOLD,
R/O: SAI-PARK NEAR YALLAWWA TEMPLE,
VIJAYAPURA 586101

...PETITIONER

(BY SRI. POOJA SAVADATTI ADV. FOR SRI R H ANGADI.,ADVOCATE)

AND:

SHIVARAJ S/O SADASHIV CHAVARE
AGE: 30 YEARS, OCC AGRICULTURAL AND DRIVER
R/O: HORATTI GALLI,HIPPARGI,
TAL: RABKAVI BANAHATTI,

DIST: BAGALKOT-587311.

Digitally
signed by
ANNAPURNA
CHINNAPPA

ANNAPURNA DANDAGAL

CHINNAPPA

DANDAGAL

Location:
HIGH COURT
OF
KARNATAKA

DHARWAD

...RESPONDENT

(BY SRI. S C BHUTI.,ADVOCATE)

CIVIL PETITION FILED U/SEC.24 OF CPC, PRAYING TO PASS
AN ORDER TO TRANSFER MC PETITION NO. 68/2022 PENDING ON
THE FILE OF SENIOR CIVIL JUDGE AND JUDICIAL MAGISTRATE

FIRST CLASS BANAHATTI FILED BY RESPONDENT HEREIN, TO THE COURT OF PRINCIPAL JUDGE, FAMILY COURT, VIJAYAPUR TO MEET THE ENDS OF JUSTICE.

THIS PETITION, COMING ON FOR ADMISSION, THIS DAY, THE COURT MADE THE FOLLOWING:

-2-

CP No. 100010 of 2023

ORDER

The Petitioner-wife is before this Court seeking to withdraw M.C.No.68/2022 pending on the file of the Senior Civil Judge and JMFC, Banahatti and transfer to the Principal Judge, Family Court, Vijayapura.

2. It is not in dispute that the petitioner is the legally wedded wife of respondent and marriage was solemnized on 19.02.2017 at Sangameshwar Temple, Hipparagi, Taluk Banahatti, district: Bagalkot as per the Hindu religion and customs and traditions. In their wedlock, a girl child has been born. Due to un-cordial relation between the petitioner and the respondent, they are living separately.

3. The petitioner had filed Crl.Misc.No.385/2022 on the file of the Principal Judge, Vijayapura seeking maintenance and the same is pending consideration before the Family Court, Vijayapura.

4. This being so, it appears that the husband has filed M.C.No.68/2022 before the Senior Civil Judge and JMFC, Banahatti, seeking for decree for divorce under Section 13(1)(ia)(ib) of the Hindu Marriage Act, 1955.

5. Heard the learned counsel for the petitioner and learned counsel for the respondent.

6. It is not in dispute that the petitioner is residing at Vijayapura and the address of the petitioner is shown in MC No.68/2022 filed by the husband is Vijayapura. It is also not in dispute that distance between Vijayapura and Banahatti is around 90 Kms and the petitioner is a young girl aged about 29 years and she has got a minor child to be taken care of, as she has financial constraints, she is staying at parents house.

7. Section 24 of the CPC enables this Court to exercise power to transfer the petition, suit, appeal or other proceedings where justice demands. In transfer petition, where the transfer is sought by the wife, the convenience of wife needs to be considered as held by Hon'ble Apex Court in catena of judgment in line. The Apex Court in case of N.C.V. Aishwarya VS. A.S.Saravana Karthik Sha reported in AIR 2022 SC 4318 has held that at para No.9 which reads as under:

"9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or

other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

8. Looking into the travel to Banahatti to attend the Court by a lady aged about 29 years, in addition she is under the protection of her aged parents and she is totally depending on her parents morally and also financially. She also not employed and having no other source of income, she could not have any accommodation for staying at said place, i.e. Banahatti. Looking into the inconvenience that caused to the wife as compared to inconvenience caused to the husband, this petition needs to allowed.

9. In light of the reasons stated supra, the petition filed by the wife needs to be allowed. Accordingly, this Court pass the following:

ORDER

a) The Civil petition is allowed.

b) The M.C.No.68/2022 pending on the file of the Senior Civil Judge and JMFC, Banahatti, is transferred to the Principal Judge, Family Court, Vijayapura and to be tried along with Crl.Misc.385/2022.

Sd/-

JUDGE VMB